

STATE OF NEW YORK

3323--A

2025-2026 Regular Sessions

IN SENATE

January 24, 2025

Introduced by Sen. SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Insurance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the insurance law, in relation to enacting the Eli Parker Levitt law

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "Eli Parker Levitt Law".

3 § 2. Paragraph 10 of subsection (i) of section 3216 of the insurance
4 law is amended by adding a new subparagraph (C) to read as follows:

5 (C) Coverage provided under this paragraph for care and treatment
6 during pregnancy shall include medically necessary transvaginal ultra-
7 sounds when recommended by nationally recognized clinical practice
8 guidelines. For the purposes of this subparagraph, "nationally recog-
9 nized clinical practice guidelines" means evidence-based clinical prac-
10 tice guidelines informed by a systematic review of evidence and an
11 assessment of the benefits, and risks of alternative care options
12 intended to optimize patient care developed by independent organizations
13 or medical professional societies utilizing a transparent methodology
14 and reporting structure and with a conflict of interest policy.

15 § 3. Paragraph 5 of subsection (k) of section 3221 of the insurance
16 law is amended by adding a new subparagraph (D) to read as follows:

17 (D) Coverage provided under this paragraph for care and treatment
18 during pregnancy shall include medically necessary transvaginal ultra-
19 sounds when recommended by nationally recognized clinical practice
20 guidelines. For the purposes of this subparagraph, "nationally recog-
21 nized clinical practice guidelines" means evidence-based clinical prac-
22 tice guidelines informed by a systematic review of evidence and an
23 assessment of the benefits, and risks of alternative care options

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 intended to optimize patient care developed by independent organizations
2 or medical professional societies utilizing a transparent methodology
3 and reporting structure and with a conflict of interest policy.

4 § 4. Paragraph 1 of subsection (c) of section 4303 of the insurance
5 law is amended by adding a new subparagraph (D) to read as follows:

6 (D) Coverage provided under this paragraph for care and treatment
7 during pregnancy shall include medically necessary transvaginal ultra-
8 sounds when recommended by nationally recognized clinical practice
9 guidelines. For the purposes of this subparagraph, "nationally recog-
10 nized clinical practice guidelines" means evidence-based clinical prac-
11 tice guidelines informed by a systematic review of evidence and an
12 assessment of the benefits, and risks of alternative care options
13 intended to optimize patient care developed by independent organizations
14 or medical professional societies utilizing a transparent methodology
15 and reporting structure and with a conflict of interest policy.

16 § 5. This act shall take effect January 1, 2027 and shall apply to any
17 policy or contract issued, renewed, modified, altered, or amended on or
18 after such date.